

STATE OF NEW YORK

3836--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. JONES -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law and the executive law, in relation to the completion of training requirements for sheriffs and undersheriffs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 1 of section 209-q of the
2 general municipal law, as amended by chapter 735 of the laws of 1988, is
3 amended to read as follows:

4 (a) Notwithstanding the provisions of any general, special or local
5 law or charter to the contrary, no person shall, after July first, nine-
6 teen hundred sixty, receive an original appointment on a permanent basis
7 as a police officer of any county, city, town, village or police
8 district unless such person has previously been awarded a certificate by
9 the executive director of the municipal police training council created
10 under article thirty-five of the executive law, attesting to [~~his~~] such
11 person's satisfactory completion of an approved municipal police basic
12 training program or a certificate provided pursuant to subdivision
13 three-b of section eight hundred forty-one of the executive law; and
14 every person who is appointed on a temporary basis or for a probationary
15 term or on other than a permanent basis as a police officer of any coun-
16 ty, city, town, village or police district shall forfeit [~~his~~] their
17 position as such unless [~~he~~] such person previously has satisfactorily
18 completed, or within the time prescribed by regulations promulgated by
19 the governor pursuant to section eight hundred forty-two of the execu-
20 tive law, satisfactorily completes, a municipal police basic training
21 program for temporary or probationary police officers and is awarded a
22 certificate by such director attesting thereto or a certificate provided
23 pursuant to subdivision three-b of section eight hundred forty-one of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 the executive law. An elected or appointed sheriff may apply for a
2 certificate provided pursuant to subdivision three-b of section eight
3 hundred forty-one of the executive law.

4 § 2. Section 840 of the executive law is amended by adding a new
5 subdivision 9 to read as follows:

6 9. The council, in consultation with the superintendent of state
7 police, shall promulgate rules and regulations with respect to:

8 (a) determining qualifications and credentials of persons previously
9 appointed to the New York state police force as a sworn member, which
10 may include successful completion of a basic training program at the
11 state police academy, that are substantially equivalent to an approved
12 municipal police basic training program under this article and which
13 shall satisfy the requirements of section two hundred nine-q of the
14 general municipal law, in lieu of the certificate awarded by the execu-
15 tive director of the municipal police training council attesting to
16 satisfactory completion of an approved municipal police basic training
17 program; and

18 (b) the form and manner in which a person may apply to receive a
19 certificate attesting that such person's qualifications and credentials
20 as a person previously appointed to the New York state police force as a
21 sworn member are substantially equivalent to satisfactory completion of
22 an approved municipal police basic training program.

23 § 3. Section 841 of the executive law is amended by adding a new
24 subdivision 3-b to read as follows:

25 3-b. Certify police officers who have qualifications and credentials
26 that the council has determined to be substantially equivalent to an
27 approved municipal police basic training program and issue certificates
28 to such police officers;

29 § 4. This act shall take effect immediately.